

N O R T H S T A R C I V I C I N S T I T U T E

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Automatic License Plate Readers and Municipal Data Governance in Michigan

A Nonpartisan Policy Research Brief

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Executive Summary

Automatic License Plate Reader (ALPR) technology has expanded rapidly across Michigan. Cameras deployed in municipalities statewide generate billions of license plate scans, with the vast majority documenting the movements of individuals not connected to any criminal activity. Despite this volume of data collection, Michigan has no comprehensive legal framework governing how ALPR data is collected, retained, shared, or destroyed.

This regulatory gap creates significant risks to individual privacy, civil liberties, and equitable law enforcement. House Bills 5492 and 5493, introduced in January 2026 by Rep. Jimmie Wilson Jr. (D-Ypsilanti) and Rep. Doug Wozniak (R-Shelby Township), represent Michigan's first bipartisan legislative effort to establish ALPR governance standards. The bills have been referred to the House Committee on Judiciary.

Key Finding: Michigan is among the minority of states with no statewide ALPR governance framework, even as its municipalities operate one of the densest ALPR networks in the Midwest. At least 16 states have enacted statutes expressly addressing ALPR use or data retention.

1. The ALPR Landscape in Michigan

1.1 How ALPRs Work

ALPRs are high-speed camera systems, including units mounted on patrol vehicles, traffic poles, and fixed surveillance points, that capture images of every passing vehicle. Optical character recognition software extracts license plate numbers, vehicle descriptions, and GPS coordinates from each scan. The captured data is then compared against law enforcement databases to flag stolen vehicles, outstanding warrants, and missing persons. When a match is detected, officers receive real-time alerts.

Critically, fewer than 0.1 percent of scans typically correspond to a vehicle of active law enforcement interest. The remaining records, which document the routine movements of individuals with no connection to criminal activity, are nonetheless stored for weeks, months, or indefinitely depending on the policies of each individual agency.

1.2 Scale of Deployment

ALPR adoption in Michigan has accelerated significantly since 2020. Most ALPR systems in Michigan are provided by Flock Safety, which operates a nationwide network processing approximately 20 billion vehicle scans per month. An investigation by 404 Media found that federal agencies including Immigration and Customs Enforcement (ICE) and Customs and Border Protection (CBP) had access to approximately 80,000 ALPR

cameras nationwide, and that local agencies have searched ALPR databases for immigration-related reasons.

2. Current Legislative Proposals

HB 5492 regulates ALPR use by private entities. HB 5493 regulates governmental use. Together, the tie-barred bills would establish Michigan's first comprehensive ALPR governance framework. Key provisions include:

- Judicial warrant requirements for accessing ALPR data in criminal investigations
- A 14-day data retention limit, after which records must be automatically destroyed
- Mandatory public reporting on ALPR use, including plates scanned, matches found, arrests made, and data-sharing incidents
- Publicly posted policies on system use and data privacy for all governmental entities operating ALPRs
- Transparency and accountability measures including quarterly usage reports

The bills carry broad bipartisan co-sponsorship, with 24 co-sponsors including members from both parties. They have been referred to the House Committee on Judiciary for consideration.

3. Comparative State Landscape

At least 16 states have enacted statutes addressing ALPR use or data retention. Michigan's proposed framework aligns with emerging national standards while addressing state-specific concerns.

State	Retention Limit	Warrant Required	Public Reporting
California	60 days	Yes	Annual audit
Colorado (proposed)	Varies	Yes (proposed)	Proposed
Maine	21 days	Yes	Required
Utah	30 days	No	Limited
Michigan (proposed)	14 days	Yes	Quarterly

Michigan's proposed 14-day retention limit would be among the shortest in the nation, reflecting a strong privacy-protective stance. The quarterly public reporting requirement would provide more frequent transparency than most existing state frameworks.

4. Key Policy Dimensions

4.1 Privacy and Civil Liberties

The core privacy concern is that ALPR systems collect data on all vehicles, not just those connected to criminal activity. Without retention limits, this creates a de facto location tracking database for entire populations. The Supreme Court's decision in *Carpenter v. United States* (2018) established that historical location data is protected by the Fourth Amendment, raising questions about the constitutional implications of indefinite ALPR data storage.

4.2 Equity and Disparate Impact

ALPR deployment patterns are not geographically neutral. Research from the Brennan Center for Justice and EFF has documented that camera placement tends to concentrate in lower-income neighborhoods and communities of color, creating disparate surveillance burdens. Additionally, the use of ALPR data by federal immigration enforcement agencies raises concerns about the impact on immigrant communities in Michigan.

4.3 Municipal Governance Gap

In the absence of state law, ALPR governance varies municipality by municipality. Some agencies have adopted internal policies. Many have none. Contract terms with vendors such as Flock Safety vary widely, and at least 30 cities nationally have canceled Flock contracts since early 2025 due to concerns about unauthorized federal access, data retention practices, and contractual transparency. Municipal leaders in Michigan currently lack clear guidance on minimum governance standards for ALPR procurement and operation.

4.4 Law Enforcement Utility

ALPR technology provides demonstrable law enforcement value in recovering stolen vehicles, locating missing persons, and supporting active investigations. Any governance framework must balance privacy protections against legitimate public safety needs. The question is not whether ALPRs should be used, but under what rules and with what accountability structures.

5. Policy Recommendations

The evidence presented in this brief supports the following policy recommendations. Michigan faces a convergence of dense ALPR deployment without statewide standards, documented federal agency access to local data, growing national regulatory momentum, and bipartisan legislative proposals already in committee. The state should act on the following:

- The Legislature should establish uniform data retention limits. HB 5493's proposed 14-day standard, with extension only by warrant or court order, reflects the approach taken by at least 16 states with ALPR statutes and appropriately balances investigative utility with privacy protection.
- Non-real-time ALPR data access should require a warrant or judicial oversight. The *Carpenter v. United States* (2018) framework supports treating aggregated location data as constitutionally protected. Michigan currently has no such requirement.
- All governmental ALPR operators should be required to publish annual transparency reports documenting scan volumes, match rates, data-sharing events, access requests, and policy violations. This is the minimum informational foundation for democratic oversight.
- ALPR camera placement should be subject to equity impact assessment. Brennan Center research documents that deployment patterns can produce disparate impacts on specific communities. Seattle's surveillance impact report model, requiring equity assessment before deployment, provides a replicable framework.
- The state should establish explicit rules governing cross-jurisdictional and federal data sharing. The 404 Media investigation documenting local police performing ALPR lookups for immigration-related purposes demonstrates the urgency. Municipalities need clear boundaries on when and under what conditions ALPR data may be shared with federal agencies.
- Municipal procurement of surveillance technology should require contractual transparency, audit rights, and public approval. At least 30 cities nationally have canceled Flock Safety contracts since early 2025, often citing inadequate oversight provisions. Standardized procurement requirements would protect municipalities from vendor lock-in and ensure public accountability.

These recommendations are presented as nonpartisan, evidence-based conclusions grounded in the research documented in this brief, comparative analysis of 16 state ALPR frameworks, and the current federal regulatory trajectory.

References

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About Northstar Civic Institute

Northstar Civic Institute is a nonpartisan civic research and policy organization based in Michigan. NCI does not engage in legislative advocacy. This brief is published for educational and informational purposes.

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